

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0001962

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: SEAN ALEXANDER, ET
AL

vs.

DEFENDANT: D'ERRICA PERRYMAN,
ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: PREFERENCE

RULING

The motion for trial preference by plaintiff Ursula Goldstone ("Plaintiff") is **GRANTED**. (Code Civ. Proc., § 36, subds. (a), (e).) Plaintiff is over 70 years of age, she has a substantial interest in this action as a whole, and her health is such that a preference is necessary to prevent prejudice to her interest in the litigation. (Code Civ. Proc., § 36, subd. (a); *Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.) In the alternative, the Court finds that the interests of justice will be served by granting this preference. (Code Civ. Proc., § 36, subd. (e).)

All parties are ordered to appear on **September 15, 2026, at 1:30 p.m. in Courtroom A** for a trial-setting and case management conference, at which time the Court will set the preferential trial date for the action as a whole consistent with this Order. The Court will also address the scheduling of remaining discovery, expert disclosure, dispositive motions, and Plaintiffs' pending motion for leave to file a Fourth Amended Complaint. Nothing in this Order shall extend the trial date beyond the period prescribed by Code of Civil Procedure section 36, subdivision (f).

Background

This is a wrongful eviction action brought by thirteen named plaintiffs arising out of alleged habitability conditions at a residential property. Plaintiff is a 95-year-old named plaintiff (date of birth July 24, 1930) who is enrolled in in-home hospice care through Madrona Hospice Care, Inc. Plaintiffs commenced this action on February 1, 2024, and trial is presently set for January 7, 2027.

Plaintiff filed the present motion seeking mandatory trial preference under Code of Civil Procedure section 36, subdivision (a), an order setting trial within 120 days, and case management directives to effectuate the preference. Defendants Tottenham Investments, Inc. and

BLVD Residential, Inc. do not oppose preference and ask that any advanced trial date apply to the action as a whole. Defendants Sausalito Evergreen SPE, LLC and North Coast Property Group, Inc. (the "North Coast Defendants") oppose the motion and separately object to Exhibit A to the declaration of Plaintiff's counsel.

Legal Standard

Code of Civil Procedure section 36, subdivision (a) provides:

A party to a civil action who is over 70 years of age may petition the court for preference, which the court shall grant if the court makes both of the following findings:

- (1) The party has a substantial interest in the action as a whole.
- (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

(Code Civ. Proc., § 36, subd. (a).)

Code of Civil Procedure section 36, subdivision (e) provides:

Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference.

(Code Civ. Proc., § 36, subd. (e).)

Code of Civil Procedure section 36, subdivision (f) provides that:

Upon the granting of such a motion for preference, the clerk shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Such a continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.

(Code Civ. Proc., § 36, subd. (f).)

Additionally, pursuant to Code of Civil Procedure section 36.5:

An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36.

(Code Civ. Proc., § 36.5.)

Discussion

The North Coast Defendants do not dispute that Plaintiff is over the age of 70 or that she has a substantial interest in this action as a whole, and the Court so finds. (Code Civ. Proc., § 36, subd. (a)(1); *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 88 [a named plaintiff in a civil action necessarily possesses a substantial interest in the case as a whole].) The contested questions are whether Exhibit A and the supporting declaration are competent to establish the health element, and whether Plaintiff's showing satisfies the standard of subdivision (a).

The Evidentiary Objection to Exhibit A Is Overruled

The North Coast Defendants object to Exhibit A — the Hospice Physician Certification of Terminal Illness of Dr. Estelita Carandang — on grounds of lack of authentication and foundation, invoking Evidence Code sections 1400, 1401, 403, and 702, and authorities governing the admission of documentary evidence. (See *People v. Goldsmith* (2014) 59 Cal.4th 258, 266; *People v. Beckley* (2010) 185 Cal.App.4th 509, 515; *Angelus Chevrolet v. State* (1981) 115 Cal.App.3d 995, 1001-1002.) Those authorities address the foundation required to admit documents into evidence at trial. A motion for preference under section 36, subdivision (a), is not measured by that standard.

Declarations submitted in support of a motion for preference are held to a different and more relaxed standard than ordinary evidence. By statute, such a motion "may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party." (Code Civ. Proc., § 36.5.) As *Fox* holds, a section 36(a) motion "includes no requirement of a doctor's declaration" and may be supported by nothing more than an attorney's declaration; such a declaration "can consist entirely of hearsay and conclusions." (*Fox, supra*, 21 Cal.App.5th at pp. 534-535.) Declarations offered in support of preference may therefore be conclusory in nature, and they are not subject to the evidentiary strictness applied to testimony offered at trial. The declaration is not admissible for any purpose other than the preference motion. (Code Civ. Proc., § 36.5.)

Measured against that standard, the declaration of Plaintiff's counsel is sufficient. Counsel attests, on personal knowledge and on information and belief, that Plaintiff is enrolled in hospice care and that her hospice physician has certified a life expectancy of six months or less if her illness runs its normal course, and he represents that he has reviewed the underlying records. Section 36.5 expressly permits that showing to rest on the attorney's information and belief as to Plaintiff's diagnosis and prognosis. The asserted defects in the formal authentication of Exhibit A do not defeat a showing the Legislature has authorized counsel to make on information and belief, and the certification and its narrative are properly considered as the basis for that belief. The objection is **OVERRULED**.¹

¹ With Plaintiff's reply, Plaintiff's counsel provides additional support for the authentication of the medical information received to support counsel's information and belief regarding Plaintiff's medical diagnosis and prognosis. The Court did not have to consider this information, as Plaintiff's counsel's

Page 3 of 5

Plaintiff Has Satisfied the Health Element of Subdivision (a)

The North Coast Defendants contend that Plaintiff's showing is stale because the February 10, 2026 certification covered a hospice benefit period ending May 10, 2026 and stated a six-month prognosis that, they argue, elapsed on August 10, 2026, before the September 8, 2026 hearing. The argument misapprehends the statutory inquiry. Plaintiff is not required to show that she suffers from a life-threatening condition; some showing of age combined with an impaired state of health suffices. (Code Civ. Proc., § 36, subd. (a); see also Code Civ. Proc., § 36.5; *Fox, supra*, 21 Cal.App.5th at p. 534.) The question under subdivision (a) is not "whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called;" it is whether the party's "health . . . is such that a preference is necessary to prevent prejudicing [her] interest in the litigation." (*Fox, supra*, 21 Cal.App.5th at pp. 534-535.)

The record establishes that Plaintiff is 95 years old and suffers from advanced, end-stage cardiac disease with progressive functional decline, profound frailty and malnutrition, a predominantly bed-to-chair functional status requiring 24-hour caregiver support, and a DNR/DNI code status. The expiration of a hospice benefit period does not establish that Plaintiff's health has improved; the natural inference from a certified terminal trajectory is continued decline, not recovery. The North Coast Defendants fail to controvert the proffered showing with "*competent medical* or other evidence." (Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (2025) ¶ 12:247.4, italics in original; see also *Fox, supra*, 21 Cal.App.5th at p. 535 [noting the defendant's failure to submit any evidence controverting the plaintiff's declarations].) On this record, Plaintiff's health is such that a preference is necessary to prevent prejudicing her interest in the litigation.

Preference Is Mandatory; No Balancing of Interests Is Permitted

Because Plaintiff satisfies the requirements of subdivision (a), preference "must be granted. No weighing of interests is involved." (*Fox, supra*, 21 Cal.App.5th at p. 535.) The Court has no discretion to deny a qualifying motion by balancing the competing interests of the litigants, the state of discovery, or the court's own calendar and resources. (*Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085-1086; *Miller v. Superior Court* (1990) 221 Cal.App.3d 1200, 1204-1205; *Sprowl v. Superior Court* (1990) 219 Cal.App.3d 777, 780-781; *Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689, 694.) "Failure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36." (*Swaithes, supra*, 212 Cal.App.3d at pp. 1085-1086.) Accordingly, the incomplete state of discovery and the pending motion for leave to amend do not provide a basis to deny or defer the preference to which Plaintiff is entitled.

Trial Setting and Case Management

Upon granting preference, the Court "shall set the matter for trial not more than 120 days from that date." (Code Civ. Proc., § 36, subd. (f); *Pabla v. Superior Court* (2023) 90 Cal.App.5th 599, 607.) Defendants Tottenham Investments, Inc. and BLVD Residential, Inc. do not oppose preference and request that any advanced trial date apply to the action as a whole; both they and the North Coast Defendants raise the pending motion for leave to file a Fourth Amended

initial declaration was sufficient in and of itself.

Complaint and the volume of remaining discovery. The mandatory preference to which Plaintiff is entitled cannot be defeated by those considerations. (*Swaithe*, *supra*, 212 Cal.App.3d at pp. 1085-1086.) They may, however, be accommodated in fashioning the orders necessary to give the preference effect. Because thirteen plaintiffs assert overlapping claims arising from the same property and conditions, and separate trials would risk duplicative proceedings and inconsistent results, the preferential trial date shall apply to the action as a whole. The Court will address the schedule for remaining discovery, expert disclosure, dispositive motions, and the pending motion for leave to amend at the conference set above; nothing in this Order resolves that motion or enlarges the 120-day period prescribed by section 36, subdivision (f).

Having found that Plaintiff has met the statutory requirements of Code of Civil Procedure section 36, subdivision (a), and even had the Court not found that Plaintiff met that burden, based upon Plaintiff's showing, the Court is satisfied that the interests of justice will be served by granting this preference additionally pursuant to Code of Civil Procedure section 36, subdivision (e). (Code Civ. Proc., § 36, subd. (e).)

Accordingly, the motion for trial preference is **GRANTED**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0004188

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: CITY OF LARKSPUR

vs.

DEFENDANT: ROSE LANE MASTER
ASSOCIATION

NATURE OF PROCEEDINGS: MOTION – EVIDENTIARY – DISCOVERY FACILITATOR PROGRAM

RULING

The City of Larkspur’s (“The City” or “Plaintiff”) Motion to Resolve Disputed Evidentiary and Legal Issues Affecting the Determination of Compensation is GRANTED.

Objections to Evidence

Defendant Rose Lane Master Association’s (“Defendant”) Objections to the Skinner Declaration Nos. 1-3 are OVERRULED.

Defendant’s Objection to Plaintiff’s Reply in Support of Motion is OVERRULED. Although titled as an Objection, the document does not follow the rules for Objections and does not identify the material objected to by page and line number. However, the Court notes that the legal premise advanced by the document is sound – relief is limited to that which was identified in the Notice of Motion and requests outside that scope raised for the first time in the Reply will not be granted.

Background

In support of its Motion, Plaintiff provides the following background:

In 2010, the Larkspur City Council approved the Rose Garden Precise Development Plan, which laid out the long-term plans for the Rose Garden Subdivision. (Skinner Decl., ¶ 3.) Per the development agreement for the subdivision, the developer dedicated a large parcel in the northwest portion of the subdivision to the City for community uses. (*Id.*) In 2013, the City Council adopted a Master Plan, which provided for development of the Larkspur Library and Community Space (the “Project”) on this parcel. (*Id.*) The Project includes a public library,